

BEFORE THE FEDERAL MARITIME COMMISSION

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FILED
FEDERAL MARITIME COMM
Docket No. 00-04

AL KOGAN d/b/a GALAWAY
INTERNATIONAL,

Complainant,

v.

WORLD EXPRESS SHIPPING,
TRANSPORTATION AND
FORWARDING SERVICES, INC.
an Illinois corporation, d/b/a
W.E.S.T. FORWARDING SERVICES,
(FMC Lic. # 3118-R),

Respondent.

**RESPONDENT/COUNTER-COMPLAINANT WORLD EXPRESS SHIPPING
TRANSPORTATION AND FORWARDING SERVICES, INC.'S
INTERROGATORIES TO COMPLAINANT AL KOGAN
d/b/a GALAWAY INTERNATIONAL**

Pursuant to § 502.205, FMC Rules of Practice and Procedure, WORLD EXPRESS SHIPPING TRANSPORTATION AND FORWARDING SERVICES, INC. ("W.E.S.T.") requests complainant, AL KOGAN d/b/a **Galaway** International ("KOGAN") to answer the following interrogatories separately and fully in writing under oath within thirty (30) days of service hereof.

DEFINITIONS

The following definitions shall apply herein:

A. "Person" means any individual natural person, partnership, **firm**, association, organization, corporation, business trust, or governmental or public legal or business entity, or its agents, employees, servants or other representatives.

B. "You" refers to KOGAN, Plaintiff in this action, including, but not limited to her agents, employees or other servants (including independent contractors and subcontractors), attorneys, outside advisors or consultants, investigators, representatives of any kind, and any other person acting on behalf or for the benefit of Plaintiff, either directly or indirectly.

C. W.E.S.T. refers to Defendant in this action, including its agents, employees, servants and all others acting on their behalf.

D. "Document" includes the original and copies of any written, recorded, or graphic matter however produced, reproduced, or **fixed** in a tangible medium of expression, of every kind and regardless of where located, including but not limited to any summary, calculations, schedule, memorandum, note, statement, letter, telegraph inter- or intra-office communication, report, diary, desk or pocket calendar or notebook, day book, appointment book, pamphlet, periodical, work sheet, list, graph, motion picture, photograph, x-ray or other machine-produced diagnostic picture or depiction of any kind, chart, index, tape, record, drawing, partial or complete report of telephone or oral conversation, compilation, tabulation, computer-stored memory component or device, study, analysis, transcript, minutes, data sheet, data processing card or tape, phonorecords, and all memorials of any conversations, meetings or conferences, by telephone or otherwise, and any other writing, notation or recording in the possession, custody or control of Plaintiff or its attorneys. The term "document" shall also

include the files in which any documents are maintained, including file folders or file jackets, and adjacent or related supporting or background materials filed or maintained.

E. "Record," listed above, includes, but is not limited to, all books of account and other books of every kind, journals, ledgers, statements, instruments, files, messages, writings of every kind, and other internal, external or other data or information of every description made or received by you in the regular course of business or otherwise, regardless of the mode in which it is recorded; the original of any such record includes the data or other information comprising a record stored or transmitted in or by means of any electronic, computerized, mechanized, or other information storage or retrieval or transmission system or device which can upon request generate, regenerate, or transmit the precise data or other information comprising the record, and an original also includes the visible data or other information so generated, regenerated, or transmitted if it is legible or can be made legible by enlargement or other process.

F. "Shipments" includes the container or containers involved in this action and/or its/their contents.

INSTRUCTIONS

1. These Interrogatories are of an ongoing nature, and should Plaintiff acquire additional information responsive to these interrogatories, the -answers shall be updated to provide the additional information.

2. If a privilege not to answer is claimed, identify each matter as to which the privilege is claimed, the nature of the privilege, and the legal and **factual** basis for each such claim.

3. If a refusal to answer an interrogatory is stated on the grounds of burdensomeness, identify the number and nature of documents needed to be searched, the location of the documents, and the number of person hours and costs required to conduct the search.

4. The time period encompassed by this request shall be from January 1998 to the present. Documents originating before the foregoing period of time and which relate or refer to documents responsive to this request must also be produced.

5. Answer each interrogatory on the basis of the entire knowledge of Plaintiff, including information in the possession of any of Plaintiff's officers, directors, employees, consultants, representatives, agents, attorneys, subsidiaries, and subcontractors.

6. If any interrogatory cannot be answered in full, answer to the extent possible and specify reasons for inability to answer.

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A.

Attorneys for Respondent

The Waterford - Suite 600

5200 Blue Lagoon Drive

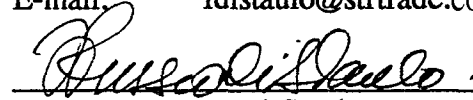
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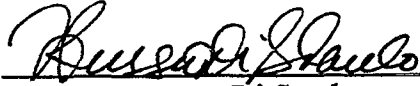
By:



Francesca Russo-Di Staulo

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the **foregoing Respondent/**
Counter-Complainant, World Express Shipping, Transportation and Forwarding Services,
Inc.'s Interrogatories to Complainant, Al Kogan was served by facsimile and U.S. Mail this
8th day of June, 2000, upon Jonathan Clark Green, Esq., Jonathan Clark Green, P.C., 350
North **LaSalle** Street, Suite 800, Chicago, **IL** 60610-4798.



Francesca Russo-Di Staulo

INTERROGATORIES

1. Provide the name, address, phone number and relationship to KOGAN of the person or persons responding to these interrogatories.

2. Identify by full name, present address, phone number and relationship to plaintiff, each person and every employee, agent, or servant of the plaintiff who has knowledge or information of any fact alleged in the complaint. For each such person state also the substance of that person's knowledge or information.

3. Identify and describe in detail each and every statement made by Peter Janetzki and/or Kim Kamphouse in relation to or concerning the shipment which is the subject of your complaint.

4. Identify and describe in detail the substance of each and every letter, memo, memorandum, correspondence, fax or other writing or communication which relates to the shipment, loss, storage, damage or delivery of plaintiffs goods which are the subject matter of this action, and for which the name of Peter **Janetzki** and/or Kim Kamphouse appears.

5. For each Count in the complaint, state with particularity:
 - a. the measure of damages sustained by plaintiff;
 - b. the method of calculation and computation of the loss which plaintiff contends supports its claims;
 - c. each and every document in plaintiff's possession or known to plaintiff which plaintiff relies on in support of such calculation.

6. State in detail each and every step taken by plaintiff to mitigate its alleged damages.

7. State in detail in what manner W.E.S.T. **“controlled”** the entire transaction concerning the Container which is the subject of your action, as alleged in paragraph IV (C) of the **Complaint**.

8. Explain and describe in detail upon what facts you rely to claim that W.E.S.T. “shipped the Container to New York and let it sit there for a week while they looked for the cheapest ocean freight charges they could find in order to increase their margin on the transaction,” as alleged in paragraph IV **(D)** of the Complaint.

9. Explain in detail what you mean in paragraph IV **(E)** of the Complaint when you allege that W.E.S.T. “caused the Container to be shipped through New York to Haifa, Israel.”

10. Explain what you mean and upon what facts you rely to claim that W.E.S.T. “knew or should have known that the Container was being shipped on an ocean vessel of ~~the~~ Zim Lines, the Israeli state carrier, which does not call at Kotka, Finland,” as alleged in paragraph IV **(E)** of the Complaint.

11. Explain in detail upon what facts you rely to claim that W.E.S.T. was the one who chose the NVOCC in New York, Atlantic Ocean Lines (“AOL”).

12. Explain in detail upon what facts you rely to claim that W.E.S.T. realized it had made a mistake concerning the Kotka requirement, as alleged in paragraph IV **(F)** of the Complaint.

13. Explain in detail upon what facts you rely to claim that W.E.S.T. held the “Container hostage in Kotka, ” as alleged in paragraph V (3) of the Complaint.

14. Explain in detail upon what facts you rely to claim that W.E.S.T. inflated its billing in regard to the Kotka-Chelyabinsk leg of the shipment, as alleged in paragraph **IV** (3) of the Complaint.

15. State in detail upon what facts you rely to allege that W.E.S.T. acted as an Nvocc.

16. Identify each witness Kogan intends to call or otherwise present at the trial in this matter. Identify all documents which each identified witness reviewed, consulted, or intends to present at the hearing in this matter and provide a summary of the substance of the facts to which each witness is expected to testify at the trial in this matter, and the basis of each witness's knowledge.

17. Identify each expert witness whom Kogan expects to call as an expert witness at the trial in this matter. State the subject matter to which the expert is expected to testify, state the substance of the facts and opinions which the expert is expected to testify and a summary of the grounds for each opinion.

I **HEREBY** CERTIFY that the answers to the above and foregoing interrogatories are true and correct to the best of my knowledge.

AL KOGAN

By: _____

Printed Name

Title: _____

Dated: _____

STATE OF CHICAGO)
) ss:
COUNTY OF _____)

BEFORE ME, the undersigned authority, personally appeared, _____, to me personally known to be the person named herein and who upon oath acknowledged herself/himself the _____ of AL KOGAN, d/b/a **Galaway** International, authorized to do so, executed the foregoing answers to interrogatories and the answers are true and correct to the best of her/his knowledge and belief.

SWORN TO AND SUBSCRIBED before me this _____ day of _____ 2000.

Notary Public

My Commission Expires:

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing **Complainant's** Responses to Respondent's Interrogatories was served by U.S. Mail this _____ day of _____, 2000, upon Francesca Russo-Di Staulo, Esquire, **Sandler, Travis & Rosenberg, P.A.**, 5200 Blue Lagoon Drive, Suite **600**, Miami, Florida 33126.

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